		"There is no cause of action in California labeled 'unjust enrichment.' " (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477.) "Common law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is 'quasi-contract.' " (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477-478.) "The equitable doctrine of unjust enrichment "is based on the idea that 'one person should not be permitted unjustly to enrich himself at the expense of another, but should be required to make restitution of or for property or benefits received, retained, or appropriated, where it is just and equitable that such restitution be made, and where such action involves no violation or frustration of law or opposition to public policy, either directly or indirectly.' " (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 478.) "Typically, the defendant's benefit and the plaintiff's loss are the same, and restitution requires the defendant to restore the plaintiff to his or her original position." (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 478.) "To confer a benefit," however, "it is not essential that money be paid directly to the recipient by the party seeking restitution." (Ibid. [citations omitted].) "When a person has received a benefit from another, he or she is required to make restitution only if the circumstances of its receipt or retention are such that, as between the two persons, it is unjust for him [or her] to retain it." (Ibid. [citations and quotations omitted].) Here, Plaintiff expressly alleges that the benefit conferred was to Defendant's members. In paragraph 61 of the FAC, Plaintiff alleges: "Defendants knew, understood, and accepted that Plaintiff was undertaking to perform beneficial COVID-19 testing and services for their members and that such testing and services were not free." (FAC, ¶ 61.) As such, the Court finds that Plaintiff has not alleged the equitable remedy of unjust enrichment because Plaintiff as not alleged a benefit that Defendant received from Plaintiff. The demurrer to the seventh cause of action for unjust enrichment is **SUSTAINED WITH LEAVE TO AMEND.** **8. Eighth Cause of Action: Declaratory Relief** Plaintiff's eighth cause of action is for declaratory relief. For the reasons discussed above, the demurrer is **SUSTAINED WITH LEAVE TO AMEND** as to the eighth cause of action is for declaratory relief. *Leave to amend is within **20 days of this order**.* **Defendant to give notice.**
2.	**30-2025-01494594** **Ahrens vs. Innovative Health Management Partners, LLC**	**1. Case Management Conference** **2. Demurrer to Amended Complaint** Defendants, Innovative Health Management Partners, LLC; Orthopedic Institute of Newport Beach, Limited Partnership; Orthopedic Institute of Newport Beach General Partnership, PC; and Orthopedic Institute of Newport Beach Holding Company, PC (collectively, "Defendants") move

for an order sustaining a demurrer to the entire First Amended Complaint ("FAC") of Plaintiff, Carla Denyse Ahrens ("Plaintiff"). Based on applicable law, and as set forth herein, said Demurrer is **OVERRULED**.

On April 23, 2026, the Court sustained Defendants' demurrer to the entirety of Plaintiff's initial complaint, with leave to amend, on the grounds that Plaintiff had not pled sufficient facts to support the extraterritorial application of California employment law in this case.

Defendants contend that the FAC still fails because Plaintiff has still not pled sufficient facts to demonstrate a substantial connection to California.

The FAC asserts three causes of action against Defendants. The first two causes of action assert violations of the Fair Employment and Housing Act ("FEHA") for age discrimination (first cause of action) and failure to take all reasonable steps necessary to prevent harassment and discrimination (second cause of action). Plaintiff's third cause of action is for wrongful and tortious discharge in violation of public policy based on Article I, Section 8 of the California Constitution, the FEHA, and the public policy of the State of California.

The FAC alleges that Plaintiff is a 70-year old female who was employed by Defendants for approximately 23 years before she was wrongfully terminated in November 2023; that at the time of hire and for the majority of Plaintiff's employment, Plaintiff was a resident of the State of California; that in or around 2020, Defendants allowed Plaintiff to work remotely from Texas where she continued her employment for Defendants in the same position and continued to provide services *exclusively* for the same location in Orange County, California; that Plaintiff currently resides in the State of Texas; and that Plaintiff continued to work remotely for Defendants' businesses located in California before she was wrongfully terminated in November 2023. (FAC, ¶¶ 4, 19, 26.)

As this Court expressed in ruling on Defendants' first demurrer, "California law contains a presumption against extraterritorial application of remedial statutes." (*Sarviss v. General Dynamics Information Technology, Inc.* (C.D. Cal. 2009) 663 F. Supp. 2d 883, 897 [finding presumption against extraterritorial application of California wage and hour law applies where the plaintiff sought overtime and payment for missed meal and rest periods only incurred outside of California].) " 'Although a state may have the power to legislate concerning the rights and obligations of its citizens with regard to transactions occurring beyond its boundaries, the presumption is that it did not intend to give its statutes any extraterritorial effect. The intention to make the act operative, with respect to occurrences outside the state, will not be declared to exist unless such intention is clearly expressed or reasonably to be inferred 'from the language of the act or from its purpose, subject matter or history." ' [Citation.]" (*Diamond Multimedia Systems, Inc. v. Superior Court* (1999) 19 Cal.4th 1036, 1059.)

Cal. Code Regs. tit. 2, § 11008 states, in relevant part: "(C) Employees located inside and outside of California are counted in determining whether employers are covered under the Act. However, employees located outside of California are not themselves covered by the protections of the Act if the allegedly unlawful conduct did not occur in California, or the allegedly unlawful conduct was not ratified by decision makers or participants in unlawful conduct located in California." (Cal. Code Regs., tit. 2, § 11008(e)(1)(C).) The " 'Act' means the California Fair Employment and Housing Act, created by Government Code section 12900." (Cal. Code Regs., tit. 2, § 11002(f).)

Campbell v. Arco Marine, Inc. (1996) 42 Cal.App.4th 1850, is controlling as it involved "the question of whether to construe the California Fair Employment and Housing Act to cover the sexual harassment claims of an employee of a California-based company who is not herself a resident of California, whose employment duties were performed, for the most part, outside the boundaries of the state, and whose injuries are based on behavior occurring outside the state." (*Campbell v. Arco Marine, Inc.* (1996) 42 Cal.App.4th 1850, 1852 ("*Campbell*").) The Court of Appeal affirmed the grant of summary judgment, holding that the Fair Employment and Housing Act was not intended to apply to nonresidents where the tortious conduct took place out of this state's territorial boundaries, and did not apply in that case as the acts of sexual harassment occurred outside the boundaries of California. (*Ibid*.)

As Plaintiff's third cause of action for wrongful discharge in violation of public policy is based, in part on the FEHA, *Campbell* is applied to all of Plaintiff's claims.

In *Tetrault v. Capital Group Companies Global*, the Central District of California considered the application of *Campbell* to various FEHA claims, including claims for discrimination and wrongful discharge. (*Tetrault v. Capital Group Companies Global* (C.D. Cal., Jan. 17, 2024, No. 2:23-CV-5144-WLH-E) 2024 WL 3468903, at *5 - *6.) In so doing, the Court surveyed how District Courts in three other cases applied *Campbell* in the context of a FEHA discrimination claim. The *Tetrault* Court persuasively concluded:

> Despite the differing outcomes, all three matters stand for the general proposition that FEHA may extend extraterritorially to non-California residents if the discriminatory conduct at issue occurred in California. *See, e.g. Gonsalves,* 2010 WL 1854146 at *5 (relying on *Campbell* to find that extraterritorial application of FEHA was not improper if complaint pled that "the discriminatory conduct occurred in California."). As such, the Court must examine the nexus between California and the allegedly discriminatory conduct and determine if the Plaintiff sufficiently identified the individuals who engaged in discriminatory conduct from California.

(*Tetrault*, at *6.)

In *Hill v. Workday, Inc.*, the Northern District of California considered whether a plaintiff, who was a citizen and resident of Maryland, was entitled to the extraterritorial application of California laws to him and his employment to allow his claims under FEHA. (*Hill v. Workday, Inc.* (2025) 773 F. Supp. 3d 779, 793 ("*Hill*").) The *Hill* Court stated:

> While 'the FEHA imposes no residency requirement on either the employer or the person aggrieved and limitation based on where the conduct occurred[,]' 'the majority of courts in California and other jurisdictions have found that the extraterritorial application of FEHA is determined by the situs of both [(1)] employment and [(2)] the material elements of the cause of action, [as] opposed to residence of the employee or the employer.' [Citation.]" (*Ibid*.) "In an extraterritoriality analysis, the situs of employment consists of the employee's 'principal place of work,' the employee's 'definite base of operations,' or the 'location where the employee's work holds a substantial connection to.' [Citation.] . . .
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> For the extraterritoriality analysis, the situs of the material elements of the cause of action factor examines whether or not the Complaint establishes a substantial connection of the situs of legally relevant events to California. [Citation.] To determine whether a party has established a substantial connection of the situs of legally relevant events to California, courts look to the 'location of where the core of the alleged wrongful conduct occurred.' [Citation.] 'The Ninth Circuit has analyzed this factor by evaluating whether the core of the claim, such as termination decision, occurred within California.' [Citation.] 'In evaluating similar wrongful termination cases, California courts have emphasized the location of

		where the termination decision was made as a crucial element of the claim because this decision gives rise to the liability of the conduct.' [Citations.] (*Hill, supra,* 773 F.Supp.3d at pp. 793-794.) Here, although Plaintiff is not a resident of California and worked from her residence in Texas, the FAC alleges that "Plaintiff's job duties involved *exclusively* scheduling patients' appointments and maintaining the schedules of multiple physicians who serviced patients at Defendants' office in Orange County, California;" throughout Plaintiff's employment she provided services exclusively for one location in Orange County, California. (FAC ¶¶ 16-19 (emphasis added).) Further, "[t]he decision to terminate Plaintiff was ratified by CEO/Executive Director, Laurie Gallagher, and Executive Assistant, Stephanie Morales, who both worked out of Defendants' Newport Beach, California, office." (FAC ¶ 29.) A Termination Letter was sent by Defendants' Executive Director, Laurie Gallagher, and issued from Defendants' Orange County, California location. (FAC ¶ 30.) These allegations are sufficient to show that the alleged age discrimination and wrongful termination occurred in California. Accordingly, the <u>demurrer</u> is **OVERRULED**. Defendants are to **file and serve their Answer within 20 days.** The Court **GRANTS** Defendants' request for <u>judicial notice</u>. **Defendants to give notice.**
3.	**30-2025-01503271** **Baskharoon vs. PHH Mortgage Corporation**	**1 Case Management Conference** **2. Demurrer to Complaint** Defendants PHH Mortgage Corporation and Ocwen Financial Services, Inc. ("Defendants") demur to the Complaint of plaintiffs Miranda H Baskharoon and Tony H Baskharoon ("Plaintiffs") on the ground that it fails to state facts sufficient to constitute a cause of action. The Court notes that no opposition has been filed. The failure to oppose a demurrer may be construed as abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue."].) In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566; *Westside Center Associates v. Safeway Stores 23, Inc*. (1996) 42 Cal.App.4th 507, 529.) The Court construes the failure to oppose the Demurrer as abandonment of Plaintiffs' claims. Therefore, the unopposed Demurrer is **SUSTAINED in its entirety with 20 days leave to amend**. **Defendants to give notice.**